

File No.: EXP202305361

## RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: On April 9, 2023, a complaint was filed with the Spanish Agency for Data Protection against A.A.A., with NIF \*\*\*NIF.1 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complaining party states that the complained party is responsible for a building located next to a property of the complaining party and that on the upper part of said building there is a video surveillance camera that, due to its location and orientation, is capable of capturing images of the accesses to the property of the complaining party, without having authorization for this.

Images of the location of the complained camera are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 12, 2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On July 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

Despite the fact that numbers XXX, YYY, and ZZZ of \*\*\*ADDRESS.1, where the investigated video surveillance camera is located, are all included in the reference \*\*\*REFERENCE.1, which is registered in the Cadastre as property of B.B.B., with NIF \*\*\*NIF.2, who, at the request of this Agency, responded on October 4, 2023: "a facility located at \*\*\*ADDRESS.1, which as you will see is not my property and is an independent property with which I have nothing to do and whose owners are the heirs of A.A.A., [...]"

On October 13, 2023, the complained party responded to this Agency's request of September 12, 2023, regarding the investigated video surveillance camera:

1. [...] "the photographed facade is not directly accessible from the public road, nor does it belong to any dwelling, as it is a warehouse used for agricultural purposes."
2. "The camera indicated as of today and for some time has been attacked by someone and is not even functioning; despite this, in the photographs themselves, it can be observed that the range of the camera is directed towards the parking areas. Since it is a camera used for the security of the parking areas and, as I have previously indicated, to protect the entrance of a warehouse located within my property where the necessary machinery for the operation is stored."
3. "I am sending you a photo of the exterior facade of the property that faces the road where the sign of

the company can be clearly seen indicating the existence of security cameras. That facade is the exterior of the property, that is, the only facade that faces the public road, being the only access to the property; therefore, from the very access, the existence of security elements within the property is already indicated."

## LEGAL GROUNDS

I

### Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

3/6

II

### Treatment for Surveillance Purposes

Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section. However, it will be possible to capture images of public roads to a greater extent when necessary to ensure the safety of strategic property or facilities or infrastructures related to transportation, without in any case allowing the capture of images from inside a private home."

Article 5 of the GDPR, "Principles relating to processing," provides in section 1:

"Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')"

The GDPR regulates the lawfulness of processing in its Article 6, which determines in section 1 under what circumstances the processing of third-party data is lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

### III

#### Claimed Facts

The complaint concerns the installation of a surveillance system in a building located next to a property of the complainant, which has a surveillance camera at the top that, due to its location and orientation, is capable of capturing images of the accesses to the complainant's property, without having authorization for this.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

Although the claimed property borders the road of the Municipality of La Laguna with cadastral references: \*\*\*REFERENCE.2 and \*\*\*REFERENCE.3, it is not clear from the cadastral information whether the access area to the claimed property is public road. The respondent states that this parking area is their property, although it is also the access to the complainant's property.

The respondent states that the cameras are not operational, and it has not been possible to verify whether the recording area where the camera is located records access to the claimed property.

The respondent would not need to obtain the consent of the complainant to install a surveillance system on their property, as the legal basis for the data processing carried out through video surveillance does not rely on the consent of the affected parties.

Given that the purpose of video surveillance activity is to ensure the safety of persons, property, and facilities, it fulfills a mission of public interest. Therefore, the legal basis for the data processing carried out through the surveillance cameras installed in the complainant's residence is expressly covered in paragraph e) of Article 6.1 of the GDPR: "processing is necessary for the performance of a task carried out in the public interest."

### IV

#### Application of the Principle of Presumption of Innocence

The principle of presumption of innocence prevents attributing an administrative infraction when there has not been obtained and verified evidence of the facts that motivate the attribution or of the involvement of the alleged infringer in them.

Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable way for the interested party.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

5/6

The presumption of innocence must apply without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of ius puniendi in its various manifestations is conditioned upon the presentation of evidence and a contradictory procedure in which the parties can defend their own positions.

In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned upon the presentation of evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, undermines this presumption (TCO Auto 3-12-81).

In the present case, although the claim presented contained indications from which it could initially be inferred that the respondent had a surveillance camera recording access to the claimant's property, during the investigative proceedings, this Agency has been informed that the surveillance cameras in

question are not functioning and that they only recorded a parking area owned by the respondent. Since they are not operational, there is no processing of personal data. Regarding excessive capture, the respondent provided images that allow for the dismissal of excessive capture.

IV

#### Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)

6/6

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)